

THE UNIVERSAL HOUSE OF JUSTICE

1997-05-30

dear bahá'í friends,

The expansion of the bahá'í community and the growing complexity of the issues which are facing National Spiritual Assemblies in certain countries have brought the cause to a new stage in its development. They have caused us in recent years to examine various aspects of the balance between centralization and decentralization. In a few countries we have authorized the National Spiritual Assemblies to establish State bahá'í councils or regional 249.8 250.1

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58 Teaching and Administrative committees. From the experience gained in the operation of these bodies, and from detailed examination of the principles set forth by Shoghi Effendi, we have reached the conclusion that the time has arrived for us to formalize a new element of bahá'í administration, between the local and national levels, comprising institutions of a special kind, to be designated as “regional bahá'í councils.”

regional bahá'í councils will be brought into being only with our permission and only in countries where conditions make this step necessary. Nevertheless, we find it desirable to inform all National Spiritual Assemblies of the nature of this historic development, and to make clear its place in the evolution of national and local bahá'í institutions.

The institutions of the Administrative Order of bahá'u'lláh, rooted in the provisions of his revelation, have emerged gradually and organically, as the bahá'í community has grown through the power of the divine impulse imparted to humankind in this age. The characteristics and functions of each of these institutions have evolved, and are still evolving, as are the relationships between them. The writings of the beloved Guardian expound the fundamental elements of this mighty System and make it clear that the Administrative Order, although different in many ways from the world order which it is the destiny of the bahá'í revelation to call into being, is both the “nucleus” and “pattern” of that world order. Thus, the evolu-

tion of the institutions of the Administrative order, while following many variants to meet changing conditions in different times and places, should strictly follow the essential principles of bahá'í administration which have been laid down in the Sacred Text and in the interpretations provided by 'Abdu'l-bahá and the guardian.

one of the subtle qualities of the bahá'í Administrative order is the balance between centralization and decentralization. This balance must be correctly maintained, but different factors enter into the equation, depending upon the institutions involved. for example, the relationship between a National or local Spiritual Assembly and its committees is of a different nature from that between National and local Spiritual Assemblies. The former is a relationship between a central administrative body and "its as-sisting organs of executive and legislative action,"

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relationship between national and local levels of the house of justice, each

250-1. letter of 18 october 1927 to the National Spiritual Assembly of the bahá'ís of the u nited States and canada.250.2

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58of which is a divinely ordained institution with clearly prescribed jurisdiction, duties and prerogatives.

regional bahá'í councils partake of some, but not all, characteristics

of Spiritual Assemblies, and thus provide a means of carrying forward the teaching work and administering related affairs of a rapidly growing bahá'í

community in a number of situations. without such an institution, the

development of a national committee structure required to cover the needs in some countries would run the danger of over-complexity through adding a further layer of committees under the regional committees, or the danger of excessive decentralization through conferring too much autonomy on

committees which are characterized by the guardian as "bodies that should be regarded in no other light than that of expert advisers and executive assistants.

The distinguishing effects of the establishment of regional bahá'í councils are the following:

- it provides for a level of autonomous decision making on both teaching and administrative matters, as distinct from merely executive action, below the National Assembly and above the local Assemblies.
- it involves the members of local Spiritual Assemblies of the area in the choice of the members of the council, thus reinforcing the bond between it and the local believers while, at the same time, bringing into public service capable believers who are known to the friends in their own region.
- it establishes direct consultative relationships between the continental counselors and the regional bahá'í councils.
- it offers the possibility of forming a regional bahá'í council in an ethnically distinct region which covers parts of two or more countries. in such a situation the council is designated to work directly under one of the National Assemblies involved, providing copies of its reports and minutes to the other National Assembly.
- The greater degree of decentralization involved in the devolution of authority upon regional bahá'í councils requires a corresponding increase in the capacity of the National Spiritual Assembly itself to keep fully informed of what is proceeding in all parts of the territory over which it has ultimate jurisdiction.

for those National Spiritual Assemblies which have already established regional bahá'í councils or regional Teaching and Administrative com-250.5

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585mittees, we enclose a document which outlines the various policies governing the formation and functioning of regional bahá'í councils. for the sake of simplicity, we have used the designation “regional bahá'í councils”

throughout, but the actual name used will, as heretofore, vary from country to country, including such names as "State bahá'í councils," "provincial

bahá'í councils" or, when referring to an individual council, "The bahá'í

council for . . ." etc. To avoid the confusion of thought which seems to have been caused by referring to "Regional Teaching and Administrative

committees," we have decided to cease using this designation and to refer to these bodies as bahá'í councils formed by appointment rather than elec-

tion. we shall be writing separately to these National Spiritual Assemblies,

indicating what modifications, if any, they should now make to the existing structures.

it is our ardent prayer at the Sacred Threshold, that the establishment of regional bahá'í councils will greatly enhance the ability of the Administrative order to deal with the complex situations with which it is confronted in a number of countries at the present time, and thus carry forward, with increased vigor, the propagation of the cause of God.

30 May 1997

THE ESTABLISHMENT OF

REGIONAL BAHÁ'Í COUNCILS

IN CERTAIN COUNTRIES,

THEIR CHARACTERISTICS AND FUNCTIONS

1 The Formation of Regional Bahá'í Councils:

1.1 Authority for the formation of regional bahá'í councils: The formation of regional bahá'í councils in any country, and the choice of the regions to be assigned to them are dependent on each case.

1.2 conditions indicating a need for the formation of regional bahá'í councils: regional bahá'í councils will be formed only in certain specific situations where this kind of decision is appropriate.250.8

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Message from the Universal House of Justice

5862. The Characteristic Features of Regional Bahá'í Councils:

2.1 mode of establishment and membership:

2.1.1 regional bahá'í councils are not necessarily es-

established universally throughout a country, but rather in those regions where the condition and size of the bahá'í community indicate that such a development would be beneficial. in such cases, all other parts of the country remain under the well-established pattern of national committees, including a national teaching committee and its regional teaching committees.

2.1.2 The number of members of a regional bahá'í council is nine or, in certain cases, seven or even five, depending upon the decision of the National Spiritual Assembly in each case.

2.1.3 in accordance with local requirements and the condition of the bahá'í community, the universal house of justice will decide which regional bahá'í councils are to be formed by election and which by appointment.

2.1.4 it is within the discretion of the National Spiritual Assembly to decide, case by case, whether its members may also serve on regional bahá'í councils. in general the preference is for members of National Assemblies not to serve on councils, whether these be elected or appointed bodies.

2.2 regional bahá'í councils formed by election:

2.2.1 The members of an elected regional bahá'í council, who shall be nine in number, are elected from among all the adult believers in the region by the members of the local Spiritual Assemblies in that region every year on 23 may, the anniversary of the declaration of the báb according to the gregorian calendar, or on a weekend immediately before or after that date.

2.2.2 owing to the large number of voters involved and the brief interval between the National convention and the elections of the regional bahá'í

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587councils, these elections are to be conducted primarily by mail, through methods to be decided by the National Spiritual Assembly. The voting is to be by secret ballot. The members of the local Spiritual Assemblies may send in their ballots individually or they may be collected by the Secretary of the local Spiritual Assembly and mailed together.

2.2.3 if feasible and desirable, an electoral meeting, or several electoral meetings, may be held in the region for those voters able to attend, in order to provide an occasion for members of local Spiritual Assemblies in the region to consult about the progress of the cause. other believers may attend, but would not take part in the voting.

2.2.4 if there is a tie vote, the tie is to be broken by lot, in view of the impracticability of holding a revote in such a situation.

2.2.5 Any vacancy on a regional bahá'í council should be filled by the person who had the next highest number of votes on the ballot in the preceding election.

2.2.6 Auxiliary board members are not eligible for service on a regional bahá'í council.

2.2.7 The result of the election is to be confirmed by the National Spiritual Assembly.

2.3 regional bahá'í councils formed by appointment:

2.3.1 it is left to the National Spiritual Assembly to de-

cide whether the number of members is to be five, seven or nine.

2.3.2 b allotting takes place among members of local

Spiritual Assemblies in the region, similarly to

that for the election of a regional bahá'í coun-

cil, but the outcome of the voting constitutes a

confidential list of nominations for the National

Spiritual Assembly, which appoints the members

of the council from among these nominees and

others, including persons proposed by the mem-250.12c

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588bers of the Auxiliary boards within whose areas of

responsibility the region lies.

3 The Functions of Regional Bahá'í Councils:

The functions of a regional bahá'í council and the degree of authority

conferred upon it are within the discretion of a National Spiritual Assem-

bly. however, they should not be limited to those of a national or regional

committee for, in such a case, there would be no justification for bringing into being a regional bahá'í council rather than appointing a national or

regional committee. The functions and responsibilities generally envisaged for a r e g i o n a l b a h á ' í c o u n c i l are as follows:

3.1 To carry out the policies of the National Spiritual Assembly and to supervise, on behalf of the National Assembly, the smooth and efficient execution of the plans and projects for its region.

3.2 To keep the National Spiritual Assembly regularly informed

of the council's activities and of the conditions of the faith

throughout the region. regional bahá'í councils are allowed

to develop their own strategies and programs, and to carry out their day-to-day work without having to obtain further approval from the National Spiritual Assembly. however, through their frequent reports and the minutes of their meetings, the National Assembly is kept informed of their activities and maintains its overall supervision of the affairs of the cause in all parts of the country.

3.3 To take initiative in the promotion of the faith in the region

and to carry out its decisions within the range of authority vested in it by the National Assembly. The National Assembly allows the council a wide latitude for autonomous action, intervening in its work only in matters which the Assembly regards as being of major importance. The main task of a regional bahá'í council is to devise and execute expansion and consolidation plans in close collaboration with the local

Spiritual Assemblies and the believers within its area of jurisdiction. its goal is to create strong local Spiritual Assemblies

which will be the focal centers of bahá'í activity, will exercise

their vitally important role in the development of the faith

and will demonstrate their ability to regulate the affairs of their local communities.^{250.14}

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5893.4 To deal with both teaching and administrative matters within the region including the appointment of committees for issues within its terms of reference, such as external affairs and the translation, publication and distribution of bahá'í literature.

3.4.1 in the area of teaching, a regional bahá'í council

may be given authority by the National Assembly to appoint, direct and supervise the work of a number of area or district teaching committees. in

those cases where a regional bahá'í council has

to carry out a wide range of functions, it may also be authorized by the National Spiritual Assembly to appoint a regional teaching committee to be re-

sponsible to it for the teaching work in the region

as a whole and for the direction and supervision of the area or district teaching committees.

3.4.2 A regional bahá'í council may be asked by the

National Spiritual Assembly to arrange and super-vise the unit elections for delegates to the national convention.

3.4.3 The working relationship between the local Spirit-

tual Assemblies and the National Spiritual As-sembly in an area where there is a regional bahá'í

council will depend upon the range of functions

and responsibilities conferred by the National As-

sembly upon the council. in any case the author-

ity to deprive a believer of his or her administrative rights, or to restore them, remains with the Na-

tional Assembly. The right of direct access to the

National Assembly by a local Spiritual Assembly

is preserved.

3.5 To be responsible, under the general guidelines and policies

established by the National Spiritual Assembly, for conduct-

ing, on behalf of the National Assembly, the external affairs of the faith at the level of the region, representing the bahá'ís

of the region in relation to the civil authorities of that region.

3.6 To take part, under the guidance of the National Spiritual Assembly and in consultation with the counselors or their 250.18

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590deputies, in the formulation of a plan for its region as part

of the national plan within the framework of each worldwide

plan.

3.7 To devise, for the approval of the National Assembly, its own

expansion and consolidation programs for the achievement of the plan for its region, within the overall framework of the

national plan.

3.8 To formulate an annual budget for the region, in consultation

with the counselors or their deputies when advisable, and to

submit this budget to the National Spiritual Assembly for its approval.

3.8.1 Alternatively, should the conditions indicate the advisability of such a method, the annual budgets of regional bahá'í councils may be specified by the National Spiritual Assembly.

3.9 To administer the budget for the region, sending regular reports and financial statements to the National Spiritual Assembly.

3.10 A regional bahá'í council can be authorized by the National Spiritual Assembly to act as its agent in operating a regional branch of the national bahá'í fund. in this respect the council may perform the following functions.

3.10.1 i t encourages believers within its region to contribute to various funds of the cause, including the regional branch of the national fund, with the aim that, in due course, the entire expenditure for the region would be provided by the believers in the region.

3.10.2 i f the whole of the budgeted expenditure for a year cannot be met by contributions from the believers in the region, the council may apply to the National Spiritual Assembly for an allocation from the national bahá'í fund.

3.10.3 i t is also within the discretion of the counselors to allocate financial assistance to a regional bahá'í council from the funds at their disposition.

3.11 u nder normal conditions, correspondence between regional bahá'í councils and the bahá'í world center should be ad-250.21

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591 dressed to the National Spiritual Assembly, which would then convey the communication to its intended recipient.

3.11.1 if, because of local conditions, the universal house of justice authorizes certain regional bahá'í councils to correspond directly with it, copies of all such correspondence should be sent to the National Assembly.

3.11.2 copies of the Bahá'í International News Service and of certain circular letters may be mailed from the bahá'í world center directly to all regional bahá'í councils.

3.11.3 when regional bahá'í councils publish bahá'í literature or regional newsletters, copies of such publications should be sent directly to the bahá'í world center under the same guidelines as apply to national bahá'í publications.

3.11.4 Although, in general, regional bahá'í councils can be authorized to correspond directly with the world center in order to share current information about the activities of their respective communities, this should not be misconstrued as a means to bypass the institution of the National Spiritual Assembly in matters requiring guidance or decision.

3.12 in most countries the legal status of regional bahá'í councils would seem to be adequately covered by the National Assembly's incorporation.

3.13 just as counselors have direct consultative relations with National and local Spiritual Assemblies, so they also have direct relations with regional bahá'í councils.

3.13.1 whenever the counselors feel it necessary or desirable, they are free to depute one or more Auxiliary board members to represent them in con-

sultations with a regional bahá'í council. Also,
occasional meetings should be arranged between a regional bahá'í council and the Auxiliary board

members responsible for areas within its region,
for the discussion of the vision and strategies for 250.25a

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592the work. A regular and free exchange of informa-
tion between Auxiliary board members on the one
hand and regional bahá'í councils on the other is
encouraged.

4 National Committees in the New Structure:

it is advisable for a National Spiritual Assembly to have a National Teaching
committee even if regional bahá'í councils are formed in every part of a
country. The functions of the National Teaching committee in a country in
which regional bahá'í councils have been established are as follows.

4.1 The guardian has referred to national committees as expert

advisers and executive assistants of a National Spiritual Assembly. This suggests that,
rather than diminishing the role of its National Teaching committee when regional bahá'í

councils are formed, a National Spiritual Assembly would develop further the advisory and
executive aspects of its responsibilities in certain respects. The capacity of the National
Teaching committee to monitor the effectiveness of the

teaching work throughout the country could be enhanced. Through its knowledge of the
progress of the work, it should be able to bring to the National Assembly's attention
strengths and needs in any region. There are also a number

of specific matters, such as the analysis of opportunities for

expansion and consolidation in rapidly changing conditions, the identification of successful
approaches to teaching, and

the dissemination of promising teaching methods, which

would benefit from the constant attention of a vibrant and competent National Teaching
committee. issues related to

teaching among minorities and specific groups who reside in more than one region of the country present another area which would benefit from a National Teaching committee's attention.

4.2 The work of the National Teaching committee in relation to regional bahá'í councils is one of service and assistance, rather than direction and supervision as it is in relation to regional teaching committees. A parallel can be seen in the work of a national training institute, to which the National Assembly assigns the task of developing human resources: the institute assists the councils by offering them programs 250.28

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59for the training of the human resources needed to carry out their plans in each region. The National Teaching committee would, similarly, offer services to the councils in support of the teaching work.

4.3 in countries where regional bahá'í councils have been introduced only for certain areas, the National Teaching committee is expected to perform not only the functions outlined above, but also to remain responsible, both directly and through its regional Teaching committees, for serving those areas not under the care of a council. in carrying out such functions there must, of course, be close collaboration between the National Teaching committee and its regional Teaching committees on the one hand, and the regional bahá'í councils on the other.

4.4 in the case of all national committees, it is important to ensure that legitimate national programs do not run counter to the process of decentralization, except in special emergency situations.

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Clarification on the Authority of the
Universal House of Justice

[signed: The Universal House of Justice]